IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Before His Honour Judge Pelham QC sitting as a Judge of the High Court

Claim No. HT-2025-000219

BRAMPTON LEISURE LIMITED

Claimant

- and -

HARTWELL CONSTRUCTION LTD

Defendant

ORDER

UPON the first Case Management Conference held on 2 June 2025

AND UPON hearing leading counsel for the Claimant and counsel for the Defendant

IT IS ORDERED THAT:

1. Disclosure: the parties shall give Extended Disclosure under Practice Direction 57AD by reference to the Issues for Disclosure. The parties shall agree a Disclosure Review Document by 27 June 2025. Disclosure by list and production shall take place by 4pm on 25 July 2025.

2. Factual evidence: the parties shall exchange signed witness statements of fact simultaneously by 4pm on 26 June 2025.

3. Expert evidence: each party has permission to adduce expert evidence from one expert in each of (a) building services engineering and (b) building façade/envelope engineering. Reports shall be exchanged by 4pm on 26 September 2025. The experts shall meet and produce a joint statement of agreement and disagreement by 24 October 2025.

4. Scott Schedule: a composite Scott Schedule incorporating the Defendant's responses and the Claimant's replies shall be filed and served by 4pm on 7 November 2025.

5. ADR: at all stages the parties shall consider settlement by mediation or other means of alternative dispute resolution. If any party considers ADR inappropriate it shall file a witness statement explaining why not less than 28 days before trial.

6. Pre-trial review: to be listed on the first available date after 6 January 2027.

7. Trial: this matter shall be tried in a 10-day window commencing in the first quarter of 2027 (Q1 2027), category B, before a TCC judge.

8. Costs: costs in the case.

Dated: 2 June 2025

By the Court